Suffolk County Registry of Deeds

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Suffolk County Registry of Deeds
Stephen J. Murphy, Register
24 New Chardon Street
Boston, MA 02114
617-788-8575
Suffolkdeeds.com

MORTGAGE

SEAPORT L TITLE HOLDER LLC, a Delaware limited liability company ("Grantor"), having a mailing address c/o WS Development, 33 Boylston Street, Suite 3000, Chestnut Hill, Massachusetts 02467, for consideration of Ten Dollars ($10.00) paid, hereby GRANTS to **SEAPORT D OFFICE OWNER LLC,** a Delaware limited liability company ("Grantee"), having a mailing address c/o WS Development, 33 Boylston Street, Suite 3000, Chestnut Hill, Massachusetts 02467,with **MORTGAGE COVENANTS** to secure payment of up to Twenty-Five Million Forty-Seven Thousand Five Hundred Ninety-Three Dollars and 00/100's ($25,047,593) or so much thereof as may be outstanding from time to time, with interest and any other charges thereon, payable as provided in a certain Promissory Note (the "Note") of even date herewith, and also to secure the performance of all covenants and agreements herein contained,

That certain parcel of land, together with the improvements thereon, situated on East Service Road and Autumn Lane in the City of Boston, Suffolk County, Massachusetts and being described on ***Exhibit A*** attached hereto and made a part hereof (the "Property"). Fee title to the land lying within the bed of Autumn Lane is expressly excluded from this conveyance as Grantor does not hold fee title to such land.

The Property is conveyed subject to and together with the benefit and burden of all matters of record, including all easements, restrictions, reservations, agreements, rights of way and other encumbrances of record, insofar as the same are now in force and applicable, and including but not limited to the following:

(a) That certain Declaration of Covenants, Restrictions, Development Standards and Easements dated as of December 22, 2011 and recorded with Suffolk County Registry of Deeds (the "Registry") in Book 48846, Page 1, as supplemented by that certain Agreement of Declarant dated as of December 27, 2011 and recorded with the Registry in Book 48869, Page 252 and that certain First Amendment to Agreement of Declarant dated as of January 16, 2013 and recorded with the Registry in Book 52661, Page 283, and as amended by that certain First Amendment to Declaration of Covenants, Restrictions, Development Standards and Easements dated as of October 23, 2015 and recorded with the Registry in Book 55221, Page 229, that certain Second Amendment to Declaration of Covenants, Restrictions, Development Standards and Easements dated as of July 7, 2017 and recorded with the Registry in Book

Property Location: East Service Road and Autumn Lane, Boston, Massachusetts

58200, Page 221, and that certain Third Amendment to Declaration of Covenants, Restrictions, Development Standards and Easements dated February 16, 2018 and recorded with the Registry in Book 59200, Page 294, and as amended by the Fourth Amendment to Declaration of Covenants, Restrictions, Development Standards and Easements by Declarant dated January 1, 2020 and recorded with the Registry in Book 62365, Page 19, and as affected by Assignment and Assumption of Declarant's Rights dated as of October 23, 2015 and recorded with the Registry in Book 55221, Page 267 (collectively, the "Declaration"), which Declaration provides inter alia that the Seaport Square Project is a multi-phase, mixed-use project being developed in the Seaport District of Boston. Development of the Seaport Square Project may occur in phases over a period of time. The Seaport Square Project will involve a variety of uses, including without limitation residential, office, hotel, research and development, cultural, educational, retail, and restaurant uses. As a result of the Seaport Square Project, the character of the Seaport Square area will change over time. The Seaport Square Project is expected to bring pedestrian and vehicular traffic into the area, and involves the construction of roadway and traffic signalization improvements. Because the Seaport Square Project will occur over an extended period of time in a phased manner, construction activities will occur on the Seaport Square Project property and on adjacent roadways regularly.

(b) That certain Notice of Activity and Use Limitation by The McCourt-Broderick Limited Partnership dated December 22, 2000 and recorded with the Registry in Book 25700, Page 329, as affected by Confirmatory Notice of Activity and Use Limitation dated January 8, 2001 and recorded with the Registry in Book 25788, Page 287, and as further affected by Partial Termination of Notice of Activity and Use Limitation dated June 19, 2014 and recorded with the Registry in Book 53112, Page 257; Partial Termination of Notice of Activity and Use Limitation dated July 29, 2015 and recorded with the Registry in Book 54915, Page 47; Partial Termination of Notice of Activity and Use Limitation dated July 29, 2015 and recorded with the Registry in Book 54915, Page 54; Partial Termination of Notice of Activity and Use Limitation dated May 18, 2017 and recorded with the Registry in Book 57999, Page 265; and Partial Termination of Notice of Activity and Use Limitation dated May 26, 2017 and recorded with the Registry in Book 57999, Page 272.

This Mortgage is on the **STATUTORY CONDITION** for any breach of which the Mortgagee shall have the **STATUTORY POWER OF SALE**.

For Grantor's title, see Deed of MS Boston Seaport, L.L.C. dated October 23, 2015 and recorded with Suffolk County Registry of Deeds in Book 55221, Page 252.

[Balance of page intentionally left blank; signature/acknowledgement page follows]

Executed as a sealed instrument to take effect as of the 28th day of April, 2022.

SEAPORT L TITLE HOLDER LLC,
a Delaware limited liability company

By: Richard Marks
Name: Richard A. Marks
Title: Vice President & Secretary
As Authorized Representative of,
and on behalf of, each of its Members

COMMONWEALTH OF MASSACHUSETTS)
) ss.
County of Middlesex)

On this 28 day of April, 2022, before me, the undersigned notary public, personally appeared Richard Marks, the Vice president of SEAPORT L TITLE HOLDER LLC, proved to me through satisfactory evidence of identification, which was/were drivers license, to be the person whose name is signed on the preceding document, and acknowledged to me that he/she signed it voluntarily for its stated purpose as the voluntary act of Seaport L Title Holder LLC.

Notary Public
My Commission Expires: June 2, 2028

STEPHANIE CHENG
Notary Public
COMMONWEALTH OF MASSACHUSETTS
My Commission Expires
June 02, 2028

EXHIBIT A

To

Mortgage from Seaport L Title Holder LLC to Seaport D Office Owner LLC

Those certain parcels of land and the improvements thereon located in Boston, Suffolk County, Massachusetts and shown as "Parcel L3" and "Parcel L6" on that certain plan entitled "Redivision Plan of Land, Seaport Block L, Congress Street, Boston, MA, Prepared for Seaport L-5 Title Holder LLC", prepared by Nitsch Engineering, dated October 24, 2019 and recorded with the Suffolk County Registry of Deeds in Book 2019, Page 609.